

25STCV19431 25STCV19431

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV19431 Hearing Date: June 30, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

25STCV19431

GUADALUPE

SEAY, vs NISSAN NORTH AMERICA, INC.

June

30, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO COMPEL INITIAL DISCLOSURES AND REQUEST FOR MONETARY
SANCTIONS PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE § 871.26.

RULING:

The Court denies the Motion.

I.

BACKGROUND

On June 30, 2025, GUADALUPE

SEAY (Plaintiff) filed a Lemon Law Complaint against NISSAN NORTH AMERICA, INC. (Defendant), alleging Causes of Action under the Song-Beverly Consumer Warranty Act (Civ. Code §§ 1790-1795.8), along with a Fifth Cause of Action for Fraudulent Inducement - Concealment.

Plaintiff alleges

purchasing, with warranty provisions, a 2023 Nissan Rogue that Defendant manufactured, which had defects including AEB System, engine, transmission and electrical. Plaintiff further alleges that Defendant failed to repair the vehicle within a reasonable number of attempts and did not promptly replace it or make restitution.

On April 23, 2026, Plaintiff

filed the Motion to Compel disclosures under Code of Civil Procedure section 871.26 and to be awarded \$2,500.00 in sanctions, on the ground Defendant failed to comply with that statutory section.

The Opposition contains

explanations about the disclosures now having been served, and delay during informal settlement efforts.

II.

LEGAL STANDARD

Code of Civil Procedure § 871.26 provides that, unless the party failing to comply with discovery requirements shows good cause, judges shall impose sanctions, including \$1,500.00 against a plaintiff's attorney, or \$2,500.00 against a defendant's attorney, to be paid within 15 business days, for the failure to comply with initial document production. (Code Civ. Proc., § 871.26, subd. (j)).

As to Lemon Law cases, Code of Civil Procedure section 871.26, effective

January 1, 2025, provides in material part, the following:

“(h) The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b):

(1) Copy of or access to a version of the owner's manual for a motor vehicle of the same make, model, and year.

(2) Any warranties issued in conjunction with the sale of the motor vehicle.

(3) Sample brochures published for the motor vehicle.

(4) The motor vehicle's original invoice, if any, to the selling dealer.

(5) Sales or lease agreement, if the manufacturer is in possession.

(6) Motor vehicle information reports, including build documentation, component information, and delivery details.

(7) Entire warranty transaction history for the motor vehicle.

(8) Listing of required field actions applicable to the motor vehicle.

(9) Published technical service bulletins (“TSBs”)¹ for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(10) Published information service bulletins (“ISBs”) for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(11) Records relating to communications between the manufacturer or dealership and the owner or lessee

of the motor vehicle, including those related to repair orders or claims involving the motor vehicle.

(12) Warranty policies and procedure manuals.

(13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle.

(14) If a pre-suit restitution or replacement request is made, all call recordings of pre-suit communications with the consumer available at the time of service of the complaint.

(15) If a pre-suit restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims.

(16) If a pre-suit restitution or replacement request is made, any nonprivileged, prelitigation evaluation.

(17) Any warranty extensions or modifications issued by the manufacturer on the motor vehicle."

(Cal. Civ. Proc. Code § 871.26, subd. (h). See also generally, 4 Witkin, Summary 11th Sales § 334C (2025); Cal. Judges Benchbook Civ. Proc. Discovery § 23.49.)

III.

ANALYSIS

Plaintiff maintains that Defendant should be compelled to serve responses and to pay sanctions, due to failure to comply with Code of Civil Procedure section 871.26 having initial disclosure requirements.

The Opposition makes points that (1) the Motion is moot after disclosures and production occurring after the Motion was filed, (2) the delay is justified by meeting and conferring about settlement, and (3) the Motion seeks disclosure and production

that goes far beyond the statutory requirements.

Where respondents served

untimely discovery responses after parties have filed motions to compel initial responses, courts have broad discretion as to ruling, including: 1) denying the motion as moot, in whole or part, where valid responses without objections have resolved the motion; 2) awarding requested sanctions; 3) allowing moving party to take the motion off calendar; 4) considering the motion as voluntarily narrowed in scope; 5) compelling responses without objection, where no legally valid responses have been provided, as to some, or all, interrogatories; 6) treating the motion as one to compel further responses, and ruling accordingly, with, or without, a separate statement; 7) ordering the parties to meet and confer; 8) ordering moving party to file a separate statement; or, 9) ordering the motion off calendar while requiring the propounding party to file a motion to compel further responses. (Sinaiko

Healthcare Consulting, Inc. v. Klugman (2007) 148 Cal.App.4th 390, 409; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 [citing Sinaiko regarding court considering supplemental responses served after motion].) Under some circumstances, it may be an abuse of discretion for a court to treat a motion as being one to compel further responses without requiring a separate motion. (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 778.)

First, the Court

exercises discretion to order the matter off calendar, considering the disclosures and production occurring after the Motion's filing.

Second, the Court

determines that there is no governing case about legislative interpretation of the scope of disclosure and production under section 871.26. "A legal proposition asserted without apposite authority necessarily fails." (People v. Taylor (2004) 119 Cal.App.4th 628, 643.) Issues of legislative interpretation involve pure questions of law that the reviewing courts independently review de novo. (E.g., Wolf v. CDS Devco (2010) 185 Cal.App.4th 903, 913.)

Third, the Court finds

that the Opposing Declaration shows good cause for failing to comply timely with the discovery requirements of section 871.26, based upon delaying for mutual and informal settlement efforts. So, the Court does not impose sanctions.

IV.

CONCLUSION

The Court denies the
Motion, for reasons stated.